

		Here, the Court cannot say as a matter of law that the offset was trivial. Although California courts have upheld a finding of trivial defect for similar-sized offsets of approximately $\frac{3}{4}$ inch, the offset was not a consistent height across the separation and a jury could reach different conclusions regarding its height depending where it believes Plaintiff tripped, with the left side of the offset reaching nearly one inch according to Plaintiff's expert and $\frac{7}{8}$ inch according to Defendant's expert. Moreover, Plaintiff has presented evidence that the lighting was low due to approaching sunset and a nearby hill, and that the offset was unlikely to be seen by pedestrians under the totality of circumstances. Therefore, Plaintiff has adequately demonstrated a triable issue regarding whether the defect was trivial for purposes of this motion.
13.	SOLIMAN VS. LAWYERS TITLE COMPANY 2025-01454308	MOTION FOR SUMMARY JUDGMENT AND/OR ADJUDICATION Defendant Lawyers Title Company's motion for summary judgment as to plaintiff Salaheldin S. Soliman's First Amended Complaint ("FAC") is GRANTED. Plaintiff's Evidentiary Objections to the Declaration of Phillip Rodriguez are OVERRULED. Defendant's Evidentiary Objections to Plaintiff's Evidence is OVERRULED. The FAC alleges a single cause of action for Promissory Estoppel against Defendant. "The elements of a promissory estoppel claim are '(1) a promise clear and unambiguous in its terms; (2) reliance by the party to whom the promise is made; (3) [the] reliance must be both reasonable and foreseeable; and (4) the party asserting the estoppel must be injured by his reliance.' [Citation.]" (<i>Granadino v. Wells Fargo Bank, N.A.</i> (2015) 236 Cal.App.4th 411, 416.) Defendant moves for judgment on the grounds Defendant did not make a clear and unambiguous promise. " ' "[A] promise is an indispensable element of the doctrine of promissory estoppel. The cases are uniform in holding that this doctrine cannot be invoked and must be held inapplicable in the absence of a showing that a promise had been made upon which the complaining party relied to his prejudice" [Citation.] The promise must ... be "clear and unambiguous in its terms." [Citation.] "Estoppel cannot be established from ... preliminary discussions and negotiations." ' ' " (<i>Granadino, supra</i>, 236 Cal.App.4th at p. 417.)

Defendant has submitted evidence to show that in 2023, Plaintiff was interested in purchasing the real property located at 2712 North Bentley Street, Orange, California 92867 (the “Subject Property”). (Defendant’s Undisputed Material Fact (“UMF”) No. 1.) Before purchasing the Subject Property, Plaintiff claims his agent, Zeyad Elalami, contacted Phillip Rodriguez, a Chief Advisory Title Officer at Lawyers Title Company, to inquire about the state of the Subject Property’s title on Plaintiff’s behalf. (UMF Nos. 2, 3.) Plaintiff claims that Rodriguez represented to Elalami on a phone call that “there existed no senior lien on the Subject Property.” (UMF No. 4.) Elalami testified that he recalled Rodriguez told him, of the Subject Property, “it’s clear to go for it.” (UMF No. 5.) Plaintiff purchased the Subject Property at a foreclosure auction in 2023, purportedly in reliance on Rodriguez’ alleged representation to Elalami concerning the Subject Property. (UMF No. 6.) After purchasing the Subject Property, Plaintiff discovered a senior Deed of Trust, recorded on July 17, 2006, still encumbered the Subject Property. (UMF No. 10.)

Plaintiff never hired Lawyers Title Company to provide an abstract of title regarding the Subject Property prior to his purchase of the Subject Property. (UMF No. 11.) Lawyers Title Company never provided Plaintiff with an abstract of title regarding the Subject Property prior to Plaintiff’s purchase of the Subject Property. (UMF No. 12.) Plaintiff did not purchase a title insurance policy from Lawyers Title Company with respect to the Subject Property, which did not issue a preliminary title report to Plaintiff prior to his purchase of the Subject Property. (UMF Nos. 13-14.)

Here, Rodriguez’s alleged statement to Elami that “it’s clear to go for it” does not constitute a legally sufficient promise for purposes of Plaintiff’s claim for Promissory Estoppel. “A ‘promise’ is an assurance that a person will or will not do something.” (*Granadino, supra*, 236 Cal.App.4th at p. 417.) A statement that a lien does not exist is a representation of an existing fact, not a promise about future conduct. (*Granadino, supra*, 236 Cal.App.4th at p. 417 [Allegation in complaint that “appellants were being reviewed for loan modification and there was no trustee’s sale pending” was a “mere statement of fact” because “[n]othing within this sentence assures appellants that Wells Fargo would refrain from completing a trustee’s sale in the future.”].) Therefore, Defendant has met its initial burden to show that Defendant did not make a clear and unambiguous promise.

The burden shifts to Plaintiff. Plaintiff contends “Rodriguez’s words promised the lien position Plaintiff would receive if he completed the acquisition.” (Opp., 5:26-27.) Rodriguez’s words “the prelim looks good,” “there are no other liens,” and “go for it,” characterize the condition of title after a transaction is completed, and are a representation of fact, not a promise, or “an assurance that [Defendant] will or will not do something.” (*Granadino, supra*, 236

		Cal.App.4th at p. 417.) Specifically, Rodriguez’s words do not show a promise by Defendant to engage in any future conduct on Plaintiff’s behalf if an undisclosed senior lien existed. Therefore, Plaintiff has failed to show a triable issue of material fact as the existence of a promise. Therefore, the Motion is GRANTED. Moving Defendant to give notice.
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